

IV. Investigation Division

Overview

59. The responsibilities for the Investigations Division (ID) are contained in *Organizational Directive 14* dated October 2020. ID responsibilities include in summary:
- Strengthening accountability through the investigation of alleged misconduct in UNRWA;
 - Review and assessment of allegations and complaints, and management in a centralized Case Management System;
 - Providing technical advice, guidance and training to staff required to carry out investigations supervised by Field and Departmental Directors; and
 - Administering a process of quality assurance by initiating reviews of investigations conducted by other HQ Departments and Field Offices.
60. Investigation work is carried out in conformity with the Uniform Guidelines for Investigations which outline the fundamental standards for investigations in the United Nations. The DIOS Guide to Conducting Investigations (2021) provides practical guidance to investigators and includes information on investigative techniques, methods and procedures which also reflects UN best practice. The nature of investigations performed under these guidelines are administrative and not criminal. Where criminal activity is identified UNRWA may refer the cases to the local national authorities for criminal prosecution.
61. When an allegation of misconduct or other wrongdoing is received the investigation division carry out a preliminary assessment of the evidence and an Intake Committee determines whether there is sufficient evidence to warrant an investigation. DIOS operates a Central Intake Unit at Headquarters Amman, and Intake Committees are also held by each Field Office under the responsibility of the FO Director.
62. When an allegation is predicated for investigation, the case is allocated to an investigator to establish the facts and conclude whether there is sufficient evidence to substantiate that misconduct has occurred. DIOS does not make a legal determination about whether the established facts legally amount to misconduct. All investigation reports which substantiate allegations of misconduct are referred by DIOS to the relevant authorising officer, who will make the necessary legal determinations and apply sanctions. Only the Commissioner-General has the authority to impose a sanction of summary dismissal.

Investigations Resources

63. As of 31 December 2023, the Investigations Division comprised of 14 posts as summarised below:
- 6 international posts: 1 P5 Chief of Investigations, 1 P4 Senior Investigator, 1 P4 Senior Investigator -SMIU (temporary project funding), 1 P4 Senior Field Investigations Support Officer, 1 P3 Intake Officer and 1 P3 Investigations Officer (temporary).
 - 5 area staff posts: 1 G17 Investigator (Acting), 1 G14 Investigations Analyst, 1 G12 Investigations Associate, 1 G12 Investigations Assistant (limited duration contract) and 1 personnel on a complementary contract: G8 Daily Paid Investigations Assistant.
 - 3 vacant posts
64. Investigations Division expenditure in 2023 amounted to \$787,748 of which \$747,161 related to the staff costs and the remaining \$40,588 to consultancies, travel, training and software and equipment.

Investigations managed by DIOS Investigation Division

65. In 2023, to fulfil the mission and scope of work, ID opened 62 investigations, closed the investigation of 32 cases, and issued 38 investigation reports relating to 42 allegations of misconduct within the Agency. The Division completed complex cases of serious misconduct including:

- Failure to comply with professional standards implicating numerous UNRWA staff members who obstructed work by closing its compound, effectively preventing other UNRWA personnel from accessing the premises and continuing crucial work functions. ID found sufficient evidence to confirm personnel violated standards of conduct.
- Medical negligence that allegedly contributed to the death of a patient at an UNRWA hospital. DIOS found that the allegations were substantiated and subsequently drafted an advisory memorandum to summarize key observations and recommendations to help improve the internal controls over operations at the hospital in question.
- Sexual Exploitation and Abuse (SEA) of a minor who attended an UNRWA school. ID interviewed multiple parties, conducted a scene examination, reviewed CCTV footage, analysed various statements and forensic reports taken in a parallel criminal investigation and prosecution of the Subject by local authorities. The allegations were not substantiated, and the implicated staff member was also acquitted of all criminal charges.
- Three cases of reported corrupt practices by UNRWA personnel, resulting in a loss of approximately \$US 13,000\$ to the Agency. The investigation's findings substantiated collusive and fraudulent practices.

66. Figure 3 below reflects a breakdown of DIOS ID cases in 2023.

Figure 3 - DIOS ID Cases in 2023

HQ	Total	Sexual Exploitation and Abuse	Sexual Harassment	Corporal Punishment	Breach of Neutrality	Assault (not CP)	Retaliation	Harassment/Discrimination/Abuse of Power	Recruitment Irregularity	Fraud, Theft & Loss to the Agency	Other Cases
Open Cases (previous)	18	2	0	0	3	0	2	1	0	9	3
Cases Opened	62	2	3	0	28	2	2	3	1	9	40
Cases Closed	32	2	1	0	4	2	2	4	0	3	24
Currently Open	48	2	2	0	27	0	2	0	1	15	19

Age of Currently Open Cases (Average Days)	394	Age of Closed Cases (Average Days)	332	Percentage of Cases Closed within 6 Months	22%
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67. As shown above, 62 complaints, containing 89 separate forms of misconduct, were predicated for investigation in 2023. In contrast, only 21 complaints were initiated for investigation in 2022. This reflects an almost three-fold increase in the number of investigations opened by ID in a single year. DIOS considers that this increase is attributable to two main factors:

- A significant increase in reports of alleged breaches of neutrality across the Agency. It is noted that in September 2022, March 2023, and November 2023, two external organizations issued four reports alleging neutrality breaches by UNRWA personnel. Most of the allegations implicated GFO staff members. The 2023 GFO neutrality cases (25 in total) were referred to DIOS ID for investigation, contributing to the increase in the number of investigations opened in 2023; and
- Approximately 20 cases of failure to comply with professional standards were predicated for investigation relating to actions committed by WBFO personnel in October 2022 and during

strike action in 2023. These cases were overseen by DIOS from HQ Amman to avoid any perceived potential or apparent conflict of interest had the cases been investigated by WBFO personnel.

Neutrality Investigations Unit

68. Given the increasing number of alleged breaches of neutrality, DIOS ID established a Neutrality Investigations Unit (NIU) in October 2023. NIU is currently operating with two personnel under temporary appointment. In 2023, The Unit conducted 34 assessments of breach of neutrality allegations received from across the Agency and is currently undertaking 28 neutrality investigation cases. The Unit also plays a key role in providing technical guidance to Field Offices regarding neutrality investigations.

Central Intake Unit

69. In 2020, DIOS established a Central Intake Unit (CIU) to assess all the allegations of misconduct which it received. The CIU carried out 210 intake assessments of misconduct allegations received in respect of HQ locations, Lebanon, Syria, West Bank and Gaza but was unable to conduct assessments of Jordan Field Office allegations (due to staffing limitations and the high volume of allegations) so a CIU representative attended all JFO intake committee meetings to provide technical guidance and advice to the JFO intake committee. The CIU will assess JFO allegations when the unit is fully staffed.

Sexual Misconduct Investigations Unit (SMIU)

70. The SMIU was established on 31 March 2023 and played a key role in developing SEA and sexual harassment (SH) policies and procedures for UNRWA's Field Offices and the Agency more broadly. This included:
- i. Reviewing draft standard operating procedures (SOP) for the management of SEA allegations.
 - ii. Updating the Agency's SEA policy and Management of SEA allegations at the UNRWA flowchart; and
 - iii. Making formal submissions regarding the revision of UNRWA's SOP on SEA Complaints Receipt and Management Process.
71. Five allegations of Sexual Misconduct were received and predicated for investigation in 2023. Three investigations were completed during the year.

DIOS Support to Field Office Investigations

72. In addition to the central team of investigators based in DIOS, each Field Office has its own team of investigators who report to the Field Office Directors. DIOS ID provides substantial support to the Field based investigation teams.
73. At the end of 2023, Field Office investigation Units comprised 19 posts and were staffed by 16 investigations personnel. The local investigation teams are also supplemented by ad-hoc *"part-time investigators"*, who are staff members with other core functions tasked to assist with Field Office investigations of low-level allegations.
74. During 2023, ID provided investigation training to investigators and part-time investigators in the Lebanon Field Office (LFO), Syria Field Office (SFO), GFO and WBFO. The training focused upon developing their professional skills in interviewing witnesses and subjects, evidence collection, and drafting investigation reports. Participants demonstrated a strong willingness to learn best practices. DIOS also arranged workshops and presentations to introduce key investigation topics and give Field Investigation Staff an opportunity to discuss and deliver presentations on key issues.

75. The DIOS Senior Field Investigations Support Officer also carried out a detailed review of ongoing decentralised investigations in each Field Offices which resulted in the closure of many aged cases and significantly reduced the backlogs, particularly in the Syria Field Office.
76. DIOS has continued its efforts to improve the quality of Field investigations and conducted several field support missions in 2023. However, due to unexpected tensions across the region and associated security concerns, missions to SFO, LFO, GFO and WBFO were suspended from October 2023. Nonetheless, during the year, DIOS participated in several witness interviews relating to field office cases to assess the quality of the interviews and offered recommendations and advice on how to streamline procedures without compromising the integrity of the investigation. Furthermore, DIOS provided feedback on its detailed review of a sample of Field investigation reports, and shared template investigation reports for each type of misconduct to guide and help improve the quality of field investigation work.
77. Given that decentralized investigations are carried out locally under the authority of Field Directors, risks still exist which DIOS cannot fully control. For example, by virtue of their location and reporting lines, local investigation teams lack complete independence from local senior management and may face conflicts of interest in dealing with staff who are their superiors.

Agency-wide Investigation Activities in 2023

78. In addition to those investigations handled centrally by DIOS ID, many more cases are currently investigated by Field Office investigation teams.
79. In 2023, **658 allegations** were received from 525 complaints. Upon consideration by CIU and Agency-wide Intake Committees, 47% resulted in an investigation being predicated, intake committees declined to predicate investigations in 34% of cases and the remaining 19% of allegations were either recorded for information or suspended, pending the provision of further information which might warrant further investigation.
80. Figure 4 provides detailed information on the total number and nature of Agency-wide investigation cases in 2023 (including those cases handled by DIOS centrally).

Figure 4 - Agency-wide Cases in 2023

UNRWA	Total	Sexual Exploitation and Abuse	Sexual Harassment	Corporal Punishment	Breach of Neutrality	Assault (not CP)	Retaliation	Harassment/Discrimination/Abuse of Power	Recruitment Irregularity	Fraud, Theft & Loss to the Agency	Other Cases
Open Cases (previous)	309	2	0	81	27	15	2	71	11	57	129
Cases Opened	238	2	3	49	47	11	3	40	8	32	117
Cases Closed	242	2	1	62	32	13	2	39	8	40	113
Currently Open	302	2	2	68	42	13	3	72	11	49	133
Age of Currently Open Cases (Average Days)		484		Age of Closed Cases (Average Days)		560		Percentage of Cases Closed within 6 Months		14%	

81. In 2023, a total of **238 cases were predicated for investigation**. As shown above, there are many different types of misconduct that warrant investigation. In 2023, failure to comply with professional standards² constituted 39% of the investigations initiated, while corporal punishment and alleged breaches of neutrality each constituted 20% of investigations. Other

² Failure to comply with professional standards falls under the category of 'other cases' in Figure 2, which constitutes a large number of the cases opened in 2023 (with 94 such allegations being opened).

allegations were broadly spread across several categories.

Trend analysis

82. Table 5 below shows the number of Agency-wide cases completed, opened, and remaining open for the five-year period 2019-2023.

Table 5 – Trend of cases opened, closed and year-end backlog

Year	New cases	Cases closed	Cases open
2019	282	179	287
2020	172	238	220
2021	212	183	249
2022	225	164	310
2023	238	242	302

83. The 242 investigations closed in 2023 reflects a significant increase from the previous year (164). As noted earlier, the support provided by the Field Investigations support officer to the Field Offices in 2023 played a key role in helping to finalize and close investigations. In particular, the support officer assisted with the review of aged cases (some of which dated back to 2017), assisted investigators write investigations closure memos as well as assisting in the drafting of investigation reports. As a result, the Agency's backlog of open cases decreased, and the number recorded fewer open cases than the previous year for the first time in 3 years.

Performance

84. The performance of investigation work is measured through two key indicators:

- **The length of time taken to issue an investigation report:** the target is to complete all investigations within an average duration of 230 days.
- **The time taken to commence an SEA investigation:** the target is to commence investigations of SEA investigations within 3 months of allegations being reported.

85. While all SEA investigations were started within the target 3-month period and met the performance target, this was not the case for other investigations. The average time taken to complete an investigation significantly exceeded the 230-day target.

86. DIOS centrally managed investigations took an average of 339 days (328 in 2022) to complete and the average completion time across all UNRWA investigations was 562 days (472 in 2022). It should be noted that the time taken to close an investigation is not calculated until the investigation is completed. The action taken to clear the most aged cases in 2023 therefore contributed to an increase in the overall average time taken to close investigations.

87. The time taken to investigate an allegation will mainly depend on the number of resources available for investigation, the complexity of a case, underlying logistical issues and the number of witnesses and their availability. While a timely conclusion is in the Agency's best interests, it is also important that an investigation be thorough and objective and that all reasonable avenues of inquiry are exhausted.

88. DIOS recognises that performance in completing investigations must be improved across the agency and reiterates its commitment to improve performance. Planned actions in 2024 include:

- prioritization of recruitment and on-boarding of additional investigator positions as well as urgent recruitment action to fill existing vacancies.
 - closer monitoring of cases by DIOS through a comprehensive case tracker;
 - thorough analysis to identify the main reasons for the excessive length of investigations and developing solutions to address the problems and weaknesses identified; and
 - exploring ways to streamline the investigation process and reporting without impacting the integrity of investigations.
89. An independent external evaluation of all investigation work conducted within UNRWA will be carried out in 2024 to assist DIOS improve its policies and procedures and to streamline investigations.

Way forward

90. *The capacity of DIOS to investigate breaches of neutrality requires strengthening.* The recent and continuing growth in allegations of breaches of neutrality requires DIOS to strengthen its capacity to respond by centralizing the management of all neutrality investigations and by devoting more resources to this area. Increased donor funding has been made available to enhance DIOS resources in 2024 and DIOS will also work with other internal (e.g. Ethics) and external partners (e.g. OIOS) to address neutrality issues more effectively.
91. *The timeliness of its investigation work can be improved.* DIOS recognizes the importance of meeting the baseline target of 230 days for issuing the investigation report. Therefore, DIOS will focus on further developing the management of cases under investigation. Additionally, DIOS is developing a clear tracking strategy for all cases with an emphasis on reducing backlog cases, which includes systematic and close management of cases under investigation. DIOS will also review the appropriateness of its internal target for the average number of cases each investigator should be expected to clear.
92. *The management and supervision of investigation work should be centralized to a greater degree.* DIOS takes seriously the importance of the accuracy and integrity of the investigation process. In 2024, DIOS identified areas for improvement and developed and implemented various strategies. This included the need for a more streamlined and efficient intake process within the CIU, including the triage of complaints. The current de-centralized approach in Fields can introduce significant delays and inefficiencies.
93. *An independent evaluation of the investigation function will help DIOS identify scope for improvements.* The Investigations Division recommended to ACIO a peer review of the investigation function in 2024, and this was approved by the Advisory Committee on Internal Oversight.
94. *Engaging closely with Field Offices will reduce backlog cases and significantly improve the capacity and technical skills of local Investigators.* In 2024, DIOS will continue to strengthen support to field offices by focusing on enhancing the capacity of field investigator staff and eradicating backlogs. This aims to improve the quality of Field Investigation Office core activities by further strengthening responsiveness to requests for information related to Field Office cases and enhancing technical competency in field investigations. As part of this process, DIOS will commence a digital transformation journey that is aimed at enhancing knowledge about investigation procedure and technical issues, including confidentiality and due process rights. Part of the digital transformation includes establishing a SharePoint workflow to create a more centralized system that allows for greater oversight by DIOS over Field Office cases and intake processes.

V. List of Annexes

Annex 1: status of Evaluation recommendations.

List of evaluation reports with recommendations status by end of 2023

Evaluation Subject (Year Completed)	Closed	In Progress	Overtaken by Event	Grand Total
Centralized Evaluations	68	22	12	102
Agency's Monitoring and Reporting Activities on the Medium-Term Strategy 2016 – 2021 (2020)	11	1		12
UNRWA Protection Audit Mechanism (2021)	8			8
UNRWA Family Health Team Reform (2021)	8	1		9
UNRWA Medium Term Strategy 2016-2022 (2021)	29	7	1	37
(Review) UNRWA Management of the Emergency Response to the 2021 Gaza-Israel Conflict (2021)	6	1	1	8
UNRWA Emergency Appeals for the oPt and Syria Regional Crisis 2016-21 (2023)	5	12	2	19
UNRWA Support to Vulnerable Children in Gaza, funded by Islamic Relief USA (2023)	1		8	9
Decentralized Project Evaluations	74	18	2	94
Project 'Replacing rented schools at Jabal-al-Taj' (2018)	35	1		36
Child and family protection through a consolidated case management approach and multidisciplinary team (2019)	12			12
Strengthening the resilience of Palestinian refugees from Syria in Jordan and Lebanon: MADAD II (2020)	12		2	14
Project to develop Teacher Professional Capacity and Teaching in French (2022)	4	2		6
Mid-term Evaluation of MADAD III support in Lebanon and Jordan (2022)	7	6		13
Final Evaluation of MADAD III Support in Lebanon and Jordan (2023)	4	9		13

Annex 2: Evaluation Performance.

Performance against key indicators		
Indicator	Target (2023-2025)	2023
Strategic Objective 1: Coverage - Ensure that evaluations are applied broadly, addressing strategic priorities from across UNRWA's operations.		
% of evaluations started and completed in year planned	100%	Started: 3 of 3 (100%) Completed: 1 of 3 (33%)
Strategic Objective 2: Quality - Increase the quality and usefulness of UNRWA evaluations.		
% of evaluation reports meeting or exceeding UNRWA quality standards (disaggregated by centralized and decentralized)	100% for central and 75% decentralized	100% for central and decentralized
% of evaluation recommendations implemented by agreed target date (disaggregated by centralized and decentralized)	Combined Central and Decentral: 80%	Central 71% Decentral 65%
Strategic Objective 3: Capacity-Strengthen UNRWA's capacity to manage, undertake and use evaluations.		
Evaluation function budget as a % of UNRWA budget	0.2%	0.06%

Annex 3: Analysis of Key performance indicators

Central evaluations	Planned Start & Completion	Year Started	Year Completed
Central evaluations	Planned Start & Completion	Year Started	Year Completed
Education Reform Evaluation	2023	2023	Pending
Joint Evaluation and Audit of Gender Strategy	2023	2023	2023
Evaluation Synthesis Review	2023	2023	Pending
RTR of Gaza Response	Not planned	2023	Ongoing
# and % started as planned	3 of 3 (100%) started as planned		
# and % completed as planned	1 of 3 (33%) completed as planned		

Annex 4: Internal Audit workplan for 2023

Assignment	Type of assignment	Status at end 2023
Project Management Audit Gaza (carried forward from 2022)	Assurance	Deferred
Project Management Audit West Bank (carried forward from 2022)	Assurance	Deferred
Poverty alleviation		
Interim review RRIS upgrade	Advisory	Completed
Poverty Alleviation and Relief Services - social transfer in kind in Gaza	Assurance	Deferred
Poverty Alleviation and Relief Services - social transfer in cash in Jordan	Assurance	In progress
Hospitalization services management - Hospitalization referral SFO	Assurance	Postponed
Education		
IMT Systems - Audit of ITGC eMIS	Assurance	Postponed
Protection and Neutrality		
Gender Audit in collaboration with Evaluation division	Collaboration	Completed
Neutrality - Audit of Screening procedures/framework (carried forward from 2022)	Assurance	Completed
Provident Fund		
Provident Fund Secretariat - management of Humanitarian withdrawals at LFO	Assurance	Completed
Provident Fund Secretariat - management of Humanitarian withdrawals at HQA	Assurance	Completed
Provident Fund Secretariat - management of Humanitarian withdrawals at GFO	Assurance	Deferred
Micro Finance		
Outsourced Audit of Microfinance 2023	Outsourced	Completed
Security vulnerability		
Security vulnerability assessment and network penetration testing	Outsourced	In progress
Procurement		
Review of Fuel management in LFO (carried forward from 2022)	Advisory	Completed
Audit of low value procurement	Assurance	In progress

Annex 5: Internal Audit Performance.

Annual Performance against the KPIs				
Internal Audit Division KPI	2021	2022	2023 TARGET	2023 ACTUAL
Number of issued reports	10 reports	10 reports	10-12 reports	7 reports
Transparency and accountability: publicly disclosed audit results	100% of 8 audit summary results	100% of 8 audit summary results	100% of audit summary results	100% of audit summary results
Quality of assignments conducted: Completion of final review within 2 weeks of final report issuance	50%	75%	100%	60%
Quality of work – external assessment in 2022	Internal assessment completed in 2021 External assessment on track for 2022	General Conformance rating as per EQA	External assessment completed in 2023	External assessment completed in 2023
Percentage of work plan assignments completed	67%	78%	85%	44%
Timeliness of work plan projects completed	50%	50%	75%	20%
Recommendation implementation (as reported in the AOR)	73%	87%	80%	74%